



U.S. Department
of Transportation

**Federal Highway
Administration**

REQUEST FOR QUOTATION (RFQ)

Issuing Office:

United States Department of Transportation
Federal Highway Administration (FHWA)
Central Federal Lands Highway Division (CFLHD)
12300 W. Dakota Avenue
Lakewood, CO 80228

Agency Contact:

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Solicitation Number:

6982AF26Q000009

Title:

Geotechnical Drilling - NV FLAP CCRTC ASH(1)
Ash Canyon Road & Trailhead

Solicitation Release Date:

May 04, 2026

Technical Questions Due Date:

May 11, 2026

Quotation Due Date:

May 18, 2026, 2:00 p.m. Mountain Daylight Time

PART I

RFQ INFORMATION AND INSTRUCTIONS FOR PREPARATION OF QUOTATIONS

RFQ INFORMATION

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with the format in Revolutionary Federal Acquisition Regulation Overhaul (RFO) part 12. This announcement constitutes the only solicitation; proposals are being requested and a written solicitation will not be issued.

Solicitation Number 6982AF26Q000009 is issued as a Request for Quote (RFQ) for geotechnical drilling and subsurface investigation consisting of five (5) shallow borings, two (2) deep borings, and vacuum excavation potholing for utility locates, along with associated tasks and materials. The location is at the Ash Canyon Road and Trailhead in Carson City, Nevada

This acquisition is set-aside for small business concerns. The North American Industry Classification System (NAICS) code is **541380** with an industry size standard of **\$19.0M**

This solicitation incorporates provision and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov and <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide>

All contractors must have a current active registration in the System for Award Management (www.SAM.gov) at the time of quote submission in order to be eligible to receive an award under this RFQ.

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in DOT solicitations. Examples include:

- 52.222-25, Affirmative Action Compliance, and
- 52.212-3(d), Offeror Representations and Certifications—Commercial Products and Commercial Services.

Contracting officers will not need to consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

Notice to Offerors: This RFQ does not commit the Government to pay any costs for the preparation and submission of a quotation.

INSTRUCTIONS FOR PREPARATION OF QUOTATIONS

In responding to this RFQ, quotations **MUST** include the following:

1. **Technical/Price Quote:** Submitted pricing in the format of the Contract Line Item Number (CLIN) Structure table shown in **Part II**.
2. **Organizational Information:** Quotations shall include the following **mandatory** business information regarding your company **in the body of the cover email message**:
 - a. Confirmation your company accepts Government Task/Delivery Orders.
 - b. Business Size (Small, Woman-Owned, Disadvantaged, Hub-Zone, Large, Non-Profit, etc.)
 - c. Payment Terms (Government Standard is NET 30)
 - d. Unique Entity Identifier (Generally referred to as the Data Universal Numbering System (DUNS) Number)
 - e. Federal Tax Identification Number (TIN) (9-Digits)
 - f. Correct Mailing Address for the order (include name, telephone, email address);
Note: Mailing address and entity name shall match the information in www.sam.gov
 - g. Verification company information listed in the System for Award Management (SAM) current and accurate? <https://www.sam.gov/SAM/>
3. **Instructions for Preparation of Quotations:** Quotations shall be submitted electronically as Adobe (.pdf) files with the technical capability, pricing, past performance and organizational information sections submitted in a **SINGLE** email whose size shall not exceed 10 Megabytes.
4. **Evaluation of Quotations:** The Government intends to evaluate quotes and make a lowest price technically acceptable award. A verification of past performance will be completed.

NOTE: Failure to furnish **all** information required above may result in your quotation being considered non-responsive and eliminated from further consideration.

PART II

SCHEDULE OF SERVICES

Price Schedule				
NV FLAP CCRTC ASH(1) Ash Canyon Road and Trailhead				
Task	Unit	Quantity	Price	Cost
Mobilization and Demobilization Includes all office work, task management, travel to and from site, Per Diem Costs, utility locates through USA North 811, mobilization/demobilization for vacuum excavation potholing, traffic cones, and all miscellaneous activities and materials required for the work.	LUMP SUM	ALL	\$	\$
Drill Work 5 shallow (5 feet) borings, 2 deep (30 feet) borings, track mounted drill rig. Journeyman-level drill operator and 1 drill helper and possibly 1 laborer with pickup truck for backfilling, collecting samples, and asphalt pavement restoration. (2 to 3 person), 9 hours (not subject to wage determination)	CREW AND EQUIPMENT HOUR	9	\$	\$
Vacuum Excavation Potholing Locate 2 water lines at two locations to determine depth (4 total vertical locates), backfilling, asphalt pavement restoration.	LUMP SUM	ALL	\$	\$
Miscellaneous Supplies for collecting samples and asphalt pavement restoration: Seven (7) 5-gal buckets and lids for sample collection, Seven (7) 50 lb. bags of aggregate/gravel Five (5) 50 lb. bags of cold mix asphalt patch	LUMP SUM	ALL	\$	\$
Subtotal				\$
Total FEE with NMGRT				\$

NOTE: Unless otherwise negotiated and approved, the contractor will be paid the FFP of each CLIN upon successful completion and Government acceptance. The contractor may also request milestone payments in accordance with work completed and accepted by the Government. Satisfactory completion and acceptance will be made by the Contracting Officer's Representative.

PART III

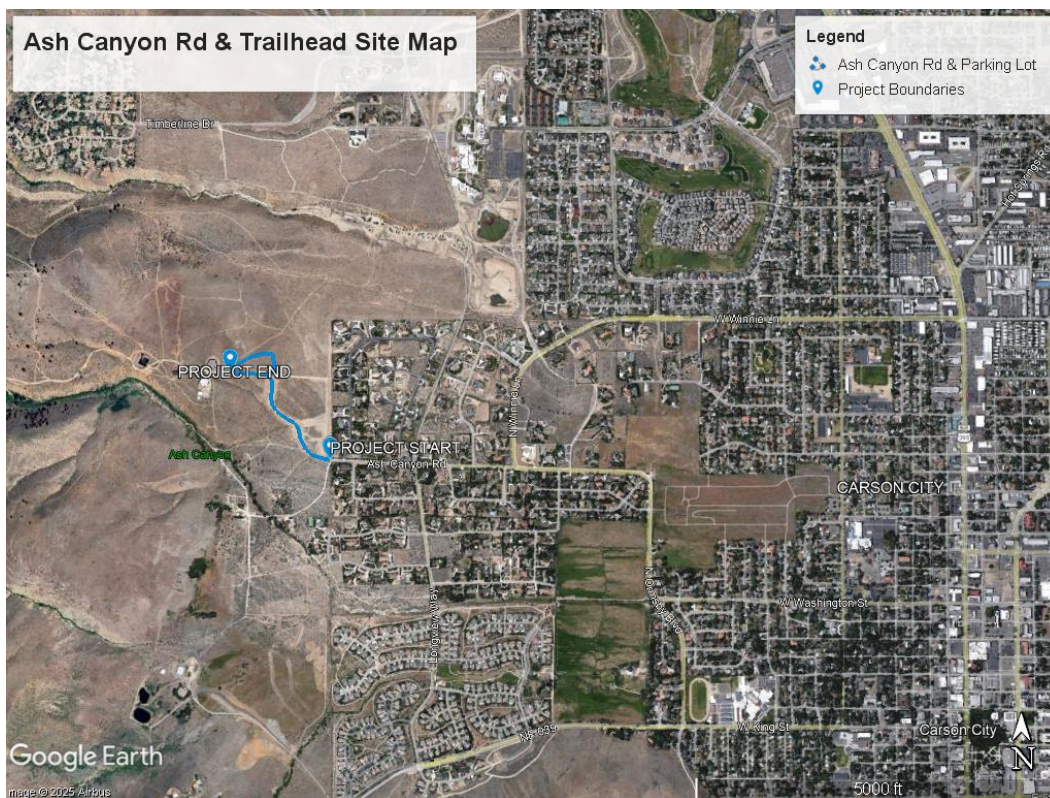
SCOPE OF WORK

Project: NV FLAP CCRTC ASH(1) Ash Canyon Road and Trailhead.

Project Location: This project is located in Carson City, Nevada. The project is located 1.9 miles west of the intersection of Business US 395 and West Winnie Lane, then west on Ash Canyon Road to beginning of project at Ash Canyon Creek Trailhead access road. The project begins at (39.173933, -119.797611) on Ash Canyon Road heading west for approximately 0.5 miles to the Carson City Property line at (39.177092, -119.802106)

Google Maps link to project site: <https://maps.app.goo.gl/HM15enp9DbqTbBsF7>

Project Site 1: NV FLAP CCRTC ASH(1) Ash Canyon Road and Trailhead.



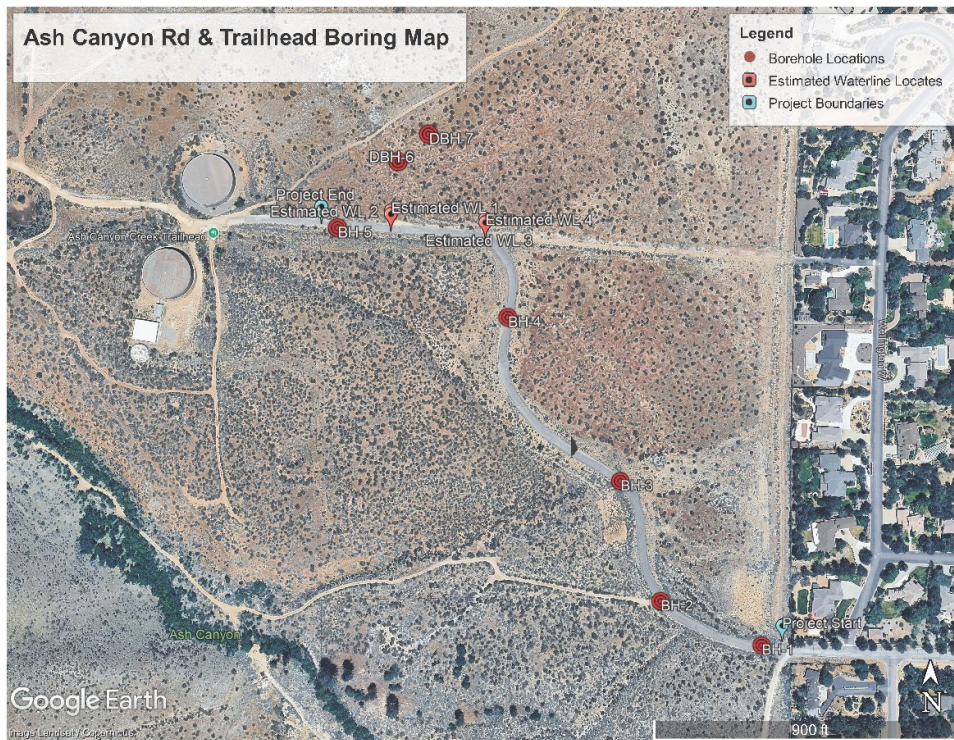
Project Location

39.173933, -119.797611

Boring Locations

NV FLAP CCRTC ASH(1) Ash Canyon Road and Trailhead			
Boring Locations			
Boring/Core Number	Estimated Depth	Latitude Degrees	Longitude Degrees
BH-1	5 ft	39.173908	-119.797817
BH-2	5 ft	39.174261	-119.798836
BH-3	5 ft	39.175186	-119.799242
BH-4	5 ft	39.176422	-119.800353
BH-5	5 ft	39.177064	-119.801956
DBH-6	30 ft	39.177542	-119.801386
DBH-7	30 ft	39.177742	-119.801100

NV FLAP CCRTC ASH(1) Ash Canyon Road and Trailhead			
Estimated Potholing Locations			
Boring/Core Number	Estimated Depth	Latitude Degrees	Longitude Degrees
Estimated WL 1	3-8 ft	39.177072	-119.801458
Estimated WL 2	3-8 ft	39.177044	-119.801461
Estimated WL 3	3-8 ft	39.177019	-119.800572
Estimated WL 4	3-8 ft	39.176992	-119.800569



Boring Location

SUBSURFACE INVESTIGATION

General: The investigative and drilling work will take place both on a gravel road (asphalt millings) and off road. All 7 sites are accessible for a track mounted drill rig. The purpose of the borings is to determine the depth and quality of the existing gravel (asphalt millings) surface, the type of material the road is bearing on, and to determine the soil profile at each location. Sample collection and engineering investigation will be performed by the government.

SAM.gov: The driller must be registered in SAM.gov with a Unique Entity ID (UEI) number to provide services to FHWA. SAM.gov registration may take up to 7 days on-line.

Drilling Needs & Equipment: The investigation will consist of shallow roadway borings with a diameter of 8 inches within the roadway which will be advanced to a maximum depth of 5 feet.

Drilling Subsurface Investigation:

- A track mounted drill rig is required for the work.
- A two-man or three-man crew is anticipated.
- Supply an 8-inch (nominal) diameter auger capable to advance to 5 to 30 feet depths through asphalt concrete surfacing, subgrade and cobbles.
- Seven (7) 5-gal buckets and lids for sample collection
- Seven (7) 50 lb. bags of gravel/aggregate backfill material

Surfacing material for backfill with cold mix asphalt patch

- Five (5) 50 lb. bags of cold mix asphalt for patching 8-inch boreholes.

Drill cuttings can be used to backfill the bore hole or dispersed at the site. Backfill all borings with excess cuttings, imported gravel/aggregate and/or native material and compact in lifts. The bore holes within the roadway need to be topped with at least 6 inches cold mix asphalt patching.

Traffic Control: The work is in the roadway travelled way and is expected to take approximately 30 minutes at each boring location (5 locations in the roadway). This is a low speed and low volume road. Flaggers are not required. Traffic control can be accomplished with 1 lane closure of approximately 50 ft using cones. It is estimated traffic cones will be sufficient to delineate the individual work zones and advanced signing for flaggers ahead is not necessary for the work zone. The estimated traffic volume is 10 ADT with an estimated 1 to 2 cars per hour and the posted speed is 25 mph.

Utility Locates for Boring Subsurface Investigation: There is 1 overhead utility crossing visible on the route. It is known there are at least 2 water lines along the route. There may be other utilities along the route as well.

The utility locates are required for the 7 boring locations identified using USA North 811. Submit locate tickets to usanorth811.org as part of the work. The coordinates are provided in this scope of work as shown in the Boring Locations table and map above.

Vacuum Excavation Potholing: Identify the depth of two waterlines in two locations from the existing ground and also the horizontal coordinates. Vacuum excavation potholing may utilize either air or water. For hydro vacuum, the driller is responsible for providing and disposing of water. Potholing will be done in

4 total locations. Estimated locations for the waterline locates are provided on the boring map and the potholing table above. Backfill all excavated holes with excess cuttings, imported gravel/aggregate and/or native material and compact in lifts. The bore holes within the roadway need to be topped with at least 6 inches cold mix asphalt patching.

Working Schedule and Hours: The anticipated schedule for the drilling is as follows:

- Provide 14-day notice to CFLHD for proposed drilling date. Schedule work between June 1, 2026 through Aug 31, 2026 (excluding holidays and weekends) coordinate workday with Darin Lockhart (720) 963-3212 (office) Email: darin.lockhart@dot.gov
- Coordinate utility locates with USA North 811 and Darin Lockhart with Central Federal Lands Highway Division – FHWA.
- An overnight stay is not expected or required. If the work is outside the travel limit for daily work, a per diem rate for hotel, meals and incidentals may be included in the mobilization item.

Workday: Meet FHWA personnel at the start of the project site near the intersection of Ash Canyon Road and the gravel Ash Canyon Creek Trailhead access road near coordinates: 39.173933, -119.797611.

- Meet at 8:00 am – begin Safety meeting to discuss boring locations and work efforts.
- 8:30 am – begin subsurface investigation
- 9:00 am to 3:00 pm – proceed with subsurface investigation for 7 locations and utility locates for 4 locations.
- 3:00 pm to 4:00 pm – remove equipment, clean up area, and close out meeting and demobilization.
- It is estimated work will be completed at 4:00 pm and an overnight stay is not required.

TABLE 1 - DRILLING QUANTITY AND TYPE

NV FLAP CCRTC ASH(1) Ash Canyon Road and Trailhead				
Quantity/ Locations	Type	Depth	Sample Size	Remarks
5	Shallow Borings 8" Auger, drilling through existing gravel (asphalt millings), base course and native material with possible cobbles or boulders.	5 feet typical	Bulk (50-70 lbs. per location) approximately $\frac{3}{4}$ of 5-gallon bucket.	Existing surfacing is gravel (asphalt millings). 5 boreholes backfilled aggregate/gravel and capped with cold mix asphalt in roadway locations.
2	Deep Borings 8" Auger, drilling through soil.	Up to 30 feet or until bedrock is encountered		Location is not on roadway and drilling through bedrock is not required.

Shallow borings are intended to penetrate through the existing gravel (asphalt millings) structural section and into the underlying material to gather bulk subgrade soil samples (50-70 lbs. per location) and measure layer depths. If boulders or rock is encountered, the bore location may be moved several feet to avoid the rock or else drilling in that location may be stopped, depending on the depth achieved. Drilling through larger boulders or bed rock will not be required.

It is estimated a soil sample of $\frac{3}{4}$ of a 5-gallon bucket will be collected from each bore hole, provide aggregate/gravel mix to replace sample material for backfilling. Compact the backfill in 1-foot lifts with soil removed from the drilling and supplement with aggregate/gravel mix and then fill the top 6 inches with a cold mix asphalt patch material. Finish to match the existing roadway.

PART IV

FEDERAL ACQUISITION REGULATION (FAR) AND TRANSPORTATION ACQUISITION REGULATION (TAR) PROVISIONS AND CLAUSES

PROVISIONS

FAR & TAR PROVISIONS INCORPORATED BY REFERENCE

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at <https://www.acquisition.gov/far>.

52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statement-Representation (JAN 2017)

52.204-7 System for Award Management (NOV 2024)(DEVIATION SEP 2025)

52.209-2 Prohibition on Contracting with Inverted Domestic Corporations – Representation (NOV 2015)(DEVIATION SEP 2025)

52.212-1 Instructions to Offerors -- Commercial Products and Commercial Services (SEP 2023)(DEVIATION SEP 2025)

52.225-2 Buy American Certificate (OCT 2022)

FAR & TAR PROVISIONS IN FULL TEXT

52.240-90 Security Prohibitions and Exclusions Representations and Certifications (DEVIATION SEP 2025)

(a) Definitions. As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

- (1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and
- (2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
 - (2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
 - (3) Consist of providing goods or services to marginalized populations of Sudan;
 - (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
 - (5) Consist of providing goods or services that are used only to promote health or education;
- or
- (6) Have been voluntarily suspended.

Sensitive technology—

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(3) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror’s possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) Iran Representation and Certifications.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer —

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resourcecenter/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) Disclosure.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

- (i) Contract number and order number, if applicable;
- (ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;
- (iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);
- (iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));
- (v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service; (vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);
- (vii) Whether alternative products or services are available that would be compliant with the prohibition;
- (viii) If the product or service is related to item maintenance, include the following information on the item being maintained:
 - (A) Brand;
 - (B) Model number, OEM number, manufacturer part number, or wholesaler number; and
 - (C) Item description, as applicable.
- (ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

- (i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.
- (ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

**FEDERAL ACQUISITION REGULATION (FAR) AND TRANSPORTATION
ACQUISITION REGULATION (TAR) CLAUSES**

CLAUSES

FAR AND TAR CLAUSES INCORPORATED BY REFERENCE AND FULL TEXT

- 52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)**
- 52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)**
- 52.204-13 System for Award Management – Maintenance (OCT 2018)(DEVIATION NOV 2025)**
- 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015)(DEVIATION SEP 2025)**
- 52.212-4 Contract Terms and Conditions – Commercial Products and Commercial Services (NOV 2023)(DEVIATION SEP 2025)**
- 52.217-8 Option to Extend Services (Nov 1999)**

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the task order period.

(End of clause)

- 52.219-6 Notice of Total Small Business Set-Aside (Nov 2020)(DEVIATION NOV 2025)**
- 52.219-28 Postaward Small Business Program Representation (Jan 2025)(DEVIATION NOV 2025))**

- 52.222-3 Convict Labor (June 2003)(DEVIATION OCT 2025)**
- 52.222-36 Equal Opportunity for Workers with Disabilities (Jun 2020)(DEVIATION OCT 2025)**
- 52.222-41 Service Contract Labor Standards (Aug 2018)(DEVIATION OCT 2025)**
- 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)**
- 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014)(DEVIATION OCT 2025)**
- 52.222-50 Combating Trafficking in Persons (Oct 2025)(DEVIATION OCT 2025)**
- 52.222-55 Minimum Wages Under Executive Order 14026 (Jan 2022)(DEVIATION OCT 2025)**
- 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)(DEVIATION OCT 2025)**
- 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024)(DEVIATION DEC 2025)**
- 52.223-23 Sustainable Products and Services (MAY 2024) (DEVIATION FEB 2025)(DEVIATION DEC 2025)_**
- 52.225-1 Buy American-Supplies (Oct 2022)(DEVIATION NOV 2025)**
- 52.226-7 Drug-Free Workplace (May 2024)**
- 52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)**
- 52.232-33 Payment by Electronic Funds Transfer-System for Award Management (Oct 2018)**
- 52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)**
- 52.233-3 Protest After Award (Aug 1996) (DEVIATION SEP 2025)**
- 52.233-4 Applicable Law for Breach of Contract Claim (Oct 2004) (DEVIATION SEP 2025).**
- 52.240-91 Security Prohibitions and Exclusions (DEVIATION SEP 2025)**

(a) Definitions. As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System

for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means: (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types; (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153); (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement,

control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

- (i) Of that equipment; or
 - (ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;
- (2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but
- (3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately

delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

- (1) Is developed or provided by a Kaspersky Lab-covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act— covered foreign entities.*

(1) *Prohibition.* The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization

Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions.*

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the

performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/speciallydesignated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-andinformation>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to

the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase “FASCSA order” in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity’s possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product)); (v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by

paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) *Subcontracts.* The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

52.252-2 -- Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at <http://www.acquisition.gov/far>

1252.223-71 Accident and Fire Reporting (Nov 2022)

1252.237-72 Prohibition on Advertising (Nov 2022)

The contractor or its representatives (including training instructors) shall not advertise or solicit business from attendees for private, non-Government training during contracted-for training sessions. This prohibition extends to unsolicited oral comments, distribution or sales of written materials, and/or sales of promotional videos or audio tapes. The contractor agrees to insert this clause in its subcontracts.

(End of clause)

1252.237-73 Key Personnel (Nov 2022)

(a) The personnel as specified below are considered essential to the work being performed under this contract and may, with the consent of the contracting parties, be changed during the course of the contract by adding or deleting personnel, as appropriate.

(b) Before removing, replacing, or diverting any of the specified individuals, the Contractor shall notify the contracting officer, in writing, before the change becomes effective. The Contractor shall submit information to support the proposed action to enable the contracting officer to evaluate the potential impact of the change on the contract. The Contractor shall not remove or replace personnel under this contract until the Contracting Officer approves the change in writing. The key personnel under this contract are: TBD

(End of clause)

1252.242-72 Dissemination of Contract Information (Nov 2022)

LOCAL CLAUSES IN FULL TEXT

CONTRACTING OFFICER'S REPRESENTATIVE AND TASK ORDER COR

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work delivered under this contract.

(b) The Contracting Officer has designed **Darin Lockhart** as the Contracting Officer's Representative (COR) for this award. The COR's responsibilities shall include technical monitoring of the contractor's performance on the overall contract award and inspecting and accepting deliveries under the contract. The COR shall be appointed in writing, at which time ALL of the responsibilities of the COR shall be detailed, and a copy of the appointment memorandum shall be furnished to the contractor. Any changes to the COR delegation shall be made in writing through

modification to this contract and changes to the existing memorandum or by issuance of a new appointment memorandum. Copies of any changes shall be provided to the contractor.

As needed, the Contracting Officer may appoint a task order Contracting Officer's Representative (TOCOR). The TOCOR's responsibilities shall include technical monitoring of the contractor's performance as well as inspecting and accepting deliveries under specified task order(s). Any changes to the TOCOR delegation will be made in writing, either by changes to the existing memorandum or by issuance of a new appointment memorandum. Notification of any changes will be provided to the contractor and COR.

(c) The COR and, if designated, the TOCOR are not authorized to perform, formally or informally, any of the following actions:

- (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
- (2) Waive or agree to any modification of the delivery schedule;
- (3) Make any final decision on any contract matter subject to the Disputes Clause;
- (4) Terminate, for any reason, the contractor's right to proceed, or issue any order causing the contractor to stop work; or
- (5) Obligate in any way, the payment of money by the Government.

(d) The contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The contractor need not proceed with direction that it considers to have been issued without proper authority. The contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR or TOCOR, if applicable, has taken an action or has issued direction (written or oral) that the contractor considers to exceed the COR or TOCOR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The contractor shall provide copies of all correspondence to the Contracting Officer and the COR and TOCOR, if applicable.

(g) Any action(s) taken by the contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the contractor's risk.

INVOICE INSTRUCTIONS

**1252.232-70 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2022)
(DEVIATION AUG 2025)**

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001.

(2) *Payment request* means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of Invoices,” this clause, and the applicable Payment clause included in this contract.

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.

(4) *Invoice payment* has the meaning given in FAR 32.001.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Governmentwide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Processing system.* The Department of Transportation utilizes the DELPHI system for processing invoices. The DELPHI module for submitting invoices is called *iSupplier*. Access to DELPHI is granted with electronic authentication of credentials (name & valid email address) utilizing the GSA credentialing platform *login.gov*. Vendors submitting invoices are required to submit invoices via *iSupplier* (DELPHI) and authenticated via *www.login.gov*.

(d) *Invoice requirements.* To receive payment and in accordance with the Prompt Payment Act, all invoices submitted as attachments in *iSupplier* (DELPHI) shall contain the following:

(1) Invoice number and invoice date.

(2) Period of performance covered by invoice.

(3) Contract number and title.

(4) Task/Delivery Order number and title (if applicable).

(5) Amount billed (by CLIN), current and cumulative.

(6) Total (\$) of billing.

(7) Cumulative total billed for all contract work to date.

(8) Name, title, phone number, and mailing address of person to be contacted in the event of a defective invoice.

(9) Travel. If the contract includes allowances for travel, all invoices which include charges pertaining to travel expenses will catalog a breakdown of reimbursable expenses with the appropriate receipts to substantiate the travel expenses.

(10) The following statement “The Contractor certifies that, by submitting this invoice to the Government, the supplies and/or services billed have been shipped, rendered, or delivered in accordance with instructions issued by the ordering officer; that they are reflected in the quantities and/or period of performance stated on the invoice; and that such supplies and/or services conform to the quantity and quality requirements specified in the applicable contract, order, or blanket purchase agreement.

Furthermore, pursuant to Executive Order 14173, Ending Illegal Discrimination And Restoring Merit-Based Opportunity, the Contractor certifies that it is in compliance with the Equal Protection principles of the Constitution and all applicable Federal anti-discrimination laws, and acknowledges that such compliance is material to the Government’s payment decision under the False Claims Act (31 U.S.C. § 3729(b)(4)). The Contractor also affirms that it does not operate any diversity, equity, and inclusion (DEI) initiatives that are inconsistent with the Equal Protection principles of the Constitution and the non-discrimination requirements of Federal law, as interpreted by the Supreme Court in *Students for Fair Admissions v. Harvard*, 600 U.S. 181 (2023).”

(e) *Payment system registration.* All persons accessing the *iSupplier* (DELPHI) will be required to have their own unique user ID and password and be credentialed through *login.gov*.

(1) *Electronic authentication.* See www.login.gov for instructions. Click on the following link for instructions on establishing a login.gov account: <https://login.gov/help/creating-an-account/how-to-create-an-account/>.

(2) To create a *www.login.gov* account, the user will need a valid email address and a working phone number. The user will create a password and then *www.login.gov* will reply with an email confirming the email address.

(3) *iSupplier* (DELPHI) registration instructions: New users should navigate to: <http://einvoice.esc.gov> to establish an account. Users are required to log in to *iSupplier* (DELPHI) every 45 days to keep it active.

Vendor POC’s who require access to the eInvoicing web-portal for invoice submission and payment tracking purposes will be required to provide their full name, email address, and current phone number to the agency POC to initiate the Delphi eInvoicing web-portal account. Vendor users and the agency POC will be notified via e- mail when the account is

created. The vendor user will be provided detailed instructions for logging into their Delphi eInvoicing account. FHWA's agency POC may be contacted at delphi_systems_access_request@dot.gov.

If the Vendor has any general questions or issues accessing the iSupplier web-portal, please have them contact the ESC iSupplier helpdesk either at:

<https://einvoice.esc.gov/>

Call Delphi Help Desk at 1-866-641-3500, option #4, then option #3

(4) Training on Delphi. To facilitate use of DELPHI, comprehensive user information is available at <http://einvoice.esc.gov>.

(5) *Account Management*. Vendors are responsible to contact their assigned COR when their firm's points of contacts will no longer be submitting invoices, so they can be removed from the system.

Instructions for contacting the Delphi Help Desk can be found at <http://einvoice.esc.gov>.

To add new points of contacts, Vendors are to submit the name(s), email address(es) and phone number(s) to delphi_systems_access_request@dot.gov

(f) *Waivers*. For contractors/vendors who are unable to utilize DOT's DELPHI system, waivers may be considered by DOT on a case-by-case basis. Waiver request forms can be obtained on the DELPHI eInvoicing website (<http://www.dot.gov/cfo/delphi-einvoicing-system.html>) or by contacting the COR. All Vendors must explain why they are unable to use or access the Internet to register and enter payment requests.

All waiver requests shall be sent via mail to:

Director of the Office of Financial Management US Department of Transportation, B-30
Office of Financial Management, Room W93-431
1200 New Jersey Avenue SE
Washington DC 20590-0001

or electronically to: DOTeInvoicing@dot.gov

The Director of the DOT Office of Financial Management will confirm or deny the request within approximately 30 days.

If a Vendor is granted a Waiver, Requests for Advance or Reimbursement and required supporting documents, shall be sent via regular U.S. Postal Service to the following address:

Federal Highway Administration Invoice Processing
P.O. Box 268865

Oklahoma City, OK 73126-8865

Attention: **(Fill-in Name of Contract Specialist)**

Invoices submitted via an overnight service must use the following physical address:

MMAC

FHWA/AMZ-150

6500 MacArthur Blvd. Oklahoma City, OK 73169

Attention: (Accounting Technician)

Express Delivery Point of Contact: Lead Account Technician, 405-954-8252

All invoices, regardless of submission method, must identify the Contract Specialist as the invoicing point of contact.

(g) *Exceptions and alternate payment procedures.* If, based on one of the circumstances set forth in 1232.7002(a) or (b), and the contracting officer directs that payment requests be made by mail, the contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request. If DELPHI is succeeded by later technology, the Contracting Officer will supply the Contractor with the latest applicable electronic invoicing instructions.

(End of clause)

"

REGISTER OF WAGE DETERMINATIONS UNDER
THE SERVICE CONTRACT ACT
By direction of the Secretary of Labor

U.S. DEPARTMENT OF LABOR
EMPLOYMENT STANDARDS ADMINISTRATION
WAGE AND HOUR DIVISION
WASHINGTON D.C. 20210

Daniel W. Simms Division of
Director Wage Determinations

Wage Determination No.: 2015-5591
Revision No.: 28
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State: Nevada

Area: Nevada Counties of Carson City

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		17.94
01012 - Accounting Clerk II		20.13
01013 - Accounting Clerk III		22.52
01020 - Administrative Assistant		33.37
01035 - Court Reporter		22.52
01041 - Customer Service Representative I		17.38
01042 - Customer Service Representative II		18.97
01043 - Customer Service Representative III		21.29
01051 - Data Entry Operator I		16.44
01052 - Data Entry Operator II		17.94
01060 - Dispatcher, Motor Vehicle		24.42
01070 - Document Preparation Clerk		17.94
01090 - Duplicating Machine Operator		17.94
01111 - General Clerk I		18.15
01112 - General Clerk II		19.80
01113 - General Clerk III		22.22
01120 - Housing Referral Assistant		25.10
01141 - Messenger Courier		14.61
01191 - Order Clerk I		16.44
01192 - Order Clerk II		17.94
01261 - Personnel Assistant (Employment) I		20.42
01262 - Personnel Assistant (Employment) II		22.84
01263 - Personnel Assistant (Employment) III		25.45
01270 - Production Control Clerk		25.10
01290 - Rental Clerk		16.42
01300 - Scheduler, Maintenance		20.13

01311 - Secretary I	20.13
01312 - Secretary II	22.52
01313 - Secretary III	25.10
01320 - Service Order Dispatcher	21.83
01410 - Supply Technician	33.37
01420 - Survey Worker	22.52
01460 - Switchboard Operator/Receptionist	18.50
01531 - Travel Clerk I	17.70
01532 - Travel Clerk II	18.83
01533 - Travel Clerk III	20.55
01611 - Word Processor I	17.94
01612 - Word Processor II	20.13
01613 - Word Processor III	22.52
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	27.30
05010 - Automotive Electrician	25.95
05040 - Automotive Glass Installer	24.57
05070 - Automotive Worker	24.57
05110 - Mobile Equipment Servicer	21.84
05130 - Motor Equipment Metal Mechanic	27.30
05160 - Motor Equipment Metal Worker	24.57
05190 - Motor Vehicle Mechanic	27.30
05220 - Motor Vehicle Mechanic Helper	20.49
05250 - Motor Vehicle Upholstery Worker	23.17
05280 - Motor Vehicle Wrecker	24.57
05310 - Painter, Automotive	25.95
05340 - Radiator Repair Specialist	24.57
05370 - Tire Repairer	21.15
05400 - Transmission Repair Specialist	27.30
07000 - Food Preparation And Service Occupations	
07010 - Baker	17.28
07041 - Cook I	17.67
07042 - Cook II	19.88
07070 - Dishwasher	15.02
07130 - Food Service Worker	15.81
07210 - Meat Cutter	26.00
07260 - Waiter/Waitress	12.32
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	25.55
09040 - Furniture Handler	17.52
09080 - Furniture Refinisher	25.53
09090 - Furniture Refinisher Helper	20.17
09110 - Furniture Repairer, Minor	22.81
09130 - Upholsterer	25.55
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	15.51
11060 - Elevator Operator	16.49
11090 - Gardener	25.14
11122 - Housekeeping Aide	16.49
11150 - Janitor	16.49
11210 - Laborer, Grounds Maintenance	20.47
11240 - Maid or Houseman	17.12
11260 - Pruner	18.93
11270 - Tractor Operator	23.57
11330 - Trail Maintenance Worker	20.47
11360 - Window Cleaner	17.83
12000 - Health Occupations	
12010 - Ambulance Driver	30.17
12011 - Breath Alcohol Technician	30.17
12012 - Certified Occupational Therapist Assistant	41.40

12015 - Certified Physical Therapist Assistant	41.40
12020 - Dental Assistant	22.84
12025 - Dental Hygienist	54.92
12030 - EKG Technician	45.74
12035 - Electroneurodiagnostic Technologist	45.74
12040 - Emergency Medical Technician	30.17
12071 - Licensed Practical Nurse I	26.97
12072 - Licensed Practical Nurse II	30.17
12073 - Licensed Practical Nurse III	33.65
12100 - Medical Assistant	22.38
12130 - Medical Laboratory Technician	30.06
12160 - Medical Record Clerk	23.09
12190 - Medical Record Technician	25.83
12195 - Medical Transcriptionist	26.97
12210 - Nuclear Medicine Technologist	66.31
12221 - Nursing Assistant I	16.24
12222 - Nursing Assistant II	18.27
12223 - Nursing Assistant III	19.94
12224 - Nursing Assistant IV	22.38
12235 - Optical Dispenser	27.43
12236 - Optical Technician	26.97
12250 - Pharmacy Technician	23.00
12280 - Phlebotomist	26.97
12305 - Radiologic Technologist	45.74
12311 - Registered Nurse I	29.56
12312 - Registered Nurse II	36.16
12313 - Registered Nurse II, Specialist	36.16
12314 - Registered Nurse III	43.75
12315 - Registered Nurse III, Anesthetist	43.75
12316 - Registered Nurse IV	52.44
12317 - Scheduler (Drug and Alcohol Testing)	37.39
12320 - Substance Abuse Treatment Counselor	34.76
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	21.37
13012 - Exhibits Specialist II	25.68
13013 - Exhibits Specialist III	32.35
13041 - Illustrator I	21.37
13042 - Illustrator II	25.68
13043 - Illustrator III	32.35
13047 - Librarian	29.32
13050 - Library Aide/Clerk	17.58
13054 - Library Information Technology Systems Administrator	26.48
13058 - Library Technician	18.86
13061 - Media Specialist I	18.53
13062 - Media Specialist II	20.73
13063 - Media Specialist III	23.84
13071 - Photographer I	16.30
13072 - Photographer II	18.23
13073 - Photographer III	22.59
13074 - Photographer IV	27.63
13075 - Photographer V	33.43
13090 - Technical Order Library Clerk	18.23
13110 - Video Teleconference Technician	20.97
14000 - Information Technology Occupations	
14041 - Computer Operator I	17.27
14042 - Computer Operator II	19.32
14043 - Computer Operator III	21.55
14044 - Computer Operator IV	23.94
14045 - Computer Operator V	26.50
14071 - Computer Programmer I	(see 1) 22.99
14072 - Computer Programmer II	(see 1)
14073 - Computer Programmer III	(see 1)

14074 - Computer Programmer IV	(see 1)	
14101 - Computer Systems Analyst I	(see 1)	
14102 - Computer Systems Analyst II	(see 1)	
14103 - Computer Systems Analyst III	(see 1)	
14150 - Peripheral Equipment Operator		17.27
14160 - Personal Computer Support Technician		23.94
14170 - System Support Specialist		24.05
15000 - Instructional Occupations		
15010 - Aircrew Training Devices Instructor (Non-Rated)		32.58
15020 - Aircrew Training Devices Instructor (Rated)		41.51
15030 - Air Crew Training Devices Instructor (Pilot)		46.72
15050 - Computer Based Training Specialist / Instructor		32.58
15060 - Educational Technologist		34.68
15070 - Flight Instructor (Pilot)		46.72
15080 - Graphic Artist		31.65
15085 - Maintenance Test Pilot, Fixed, Jet/Prop		46.72
15086 - Maintenance Test Pilot, Rotary Wing		46.72
15088 - Non-Maintenance Test/Co-Pilot		46.72
15090 - Technical Instructor		28.46
15095 - Technical Instructor/Course Developer		34.82
15110 - Test Proctor		22.97
15120 - Tutor		22.97
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations		
16010 - Assembler		19.03
16030 - Counter Attendant		19.03
16040 - Dry Cleaner		21.75
16070 - Finisher, Flatwork, Machine		19.03
16090 - Presser, Hand		19.03
16110 - Presser, Machine, Drycleaning		19.03
16130 - Presser, Machine, Shirts		19.03
16160 - Presser, Machine, Wearing Apparel, Laundry		19.03
16190 - Sewing Machine Operator		22.66
16220 - Tailor		23.57
16250 - Washer, Machine		19.94
19000 - Machine Tool Operation And Repair Occupations		
19010 - Machine-Tool Operator (Tool Room)		28.92
19040 - Tool And Die Maker		34.12
21000 - Materials Handling And Packing Occupations		
21020 - Forklift Operator		21.88
21030 - Material Coordinator		24.75
21040 - Material Expediter		24.75
21050 - Material Handling Laborer		16.63
21071 - Order Filler		18.57
21080 - Production Line Worker (Food Processing)		21.88
21110 - Shipping Packer		21.25
21130 - Shipping/Receiving Clerk		21.25
21140 - Store Worker I		18.24
21150 - Stock Clerk		23.09
21210 - Tools And Parts Attendant		21.88
21410 - Warehouse Specialist		21.88
23000 - Mechanics And Maintenance And Repair Occupations		
23010 - Aerospace Structural Welder		31.75
23019 - Aircraft Logs and Records Technician		25.82
23021 - Aircraft Mechanic I		30.43
23022 - Aircraft Mechanic II		31.75
23023 - Aircraft Mechanic III		32.96
23040 - Aircraft Mechanic Helper		22.84

23050 - Aircraft, Painter	28.92
23060 - Aircraft Servicer	25.82
23070 - Aircraft Survival Flight Equipment Technician	28.92
23080 - Aircraft Worker	27.38
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	27.38
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	30.43
23110 - Appliance Mechanic	28.92
23120 - Bicycle Repairer	24.34
23125 - Cable Splicer	30.43
23130 - Carpenter, Maintenance	30.24
23140 - Carpet Layer	27.38
23160 - Electrician, Maintenance	37.00
23181 - Electronics Technician Maintenance I	27.38
23182 - Electronics Technician Maintenance II	28.92
23183 - Electronics Technician Maintenance III	30.80
23260 - Fabric Worker	25.82
23290 - Fire Alarm System Mechanic	30.43
23310 - Fire Extinguisher Repairer	24.34
23311 - Fuel Distribution System Mechanic	30.43
23312 - Fuel Distribution System Operator	24.34
23370 - General Maintenance Worker	23.54
23380 - Ground Support Equipment Mechanic	30.43
23381 - Ground Support Equipment Servicer	25.82
23382 - Ground Support Equipment Worker	27.38
23391 - Gunsmith I	24.34
23392 - Gunsmith II	27.38
23393 - Gunsmith III	30.43
23410 - Heating, Ventilation And Air-Conditioning Mechanic	29.51
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	30.78
23430 - Heavy Equipment Mechanic	30.43
23440 - Heavy Equipment Operator	30.70
23460 - Instrument Mechanic	30.43
23465 - Laboratory/Shelter Mechanic	28.92
23470 - Laborer	16.63
23510 - Locksmith	28.92
23530 - Machinery Maintenance Mechanic	30.86
23550 - Machinist, Maintenance	25.14
23580 - Maintenance Trades Helper	22.84
23591 - Metrology Technician I	30.43
23592 - Metrology Technician II	31.75
23593 - Metrology Technician III	32.96
23640 - Millwright	30.43
23710 - Office Appliance Repairer	28.92
23760 - Painter, Maintenance	27.85
23790 - Pipefitter, Maintenance	31.61
23810 - Plumber, Maintenance	30.05
23820 - Pneudraulic Systems Mechanic	30.43
23850 - Rigger	30.43
23870 - Scale Mechanic	27.38
23890 - Sheet-Metal Worker, Maintenance	30.43
23910 - Small Engine Mechanic	27.38
23931 - Telecommunications Mechanic I	30.43
23932 - Telecommunications Mechanic II	31.75
23950 - Telephone Lineman	30.43
23960 - Welder, Combination, Maintenance	27.63
23965 - Well Driller	30.43
23970 - Woodcraft Worker	30.43
23980 - Woodworker	24.34
24000 - Personal Needs Occupations	

24550 - Case Manager	23.44
24570 - Child Care Attendant	14.19
24580 - Child Care Center Clerk	17.70
24610 - Chore Aide	15.47
24620 - Family Readiness And Support Services Coordinator	23.44
24630 - Homemaker	23.44
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	30.43
25040 - Sewage Plant Operator	29.34
25070 - Stationary Engineer	30.43
25190 - Ventilation Equipment Tender	22.84
25210 - Water Treatment Plant Operator	29.34
27000 - Protective Service Occupations	
27004 - Alarm Monitor	24.00
27007 - Baggage Inspector	17.68
27008 - Corrections Officer	32.43
27010 - Court Security Officer	34.39
27030 - Detection Dog Handler	19.78
27040 - Detention Officer	32.43
27070 - Firefighter	36.00
27101 - Guard I	17.68
27102 - Guard II	19.78
27131 - Police Officer I	36.00
27132 - Police Officer II	40.00
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	14.22
28042 - Carnival Equipment Repairer	15.16
28043 - Carnival Worker	11.42
28210 - Gate Attendant/Gate Tender	16.25
28310 - Lifeguard	15.31
28350 - Park Attendant (Aide)	18.17
28510 - Recreation Aide/Health Facility Attendant	14.03
28515 - Recreation Specialist	22.52
28630 - Sports Official	14.48
28690 - Swimming Pool Operator	18.81
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	27.38
29020 - Hatch Tender	27.38
29030 - Line Handler	27.38
29041 - Stevedore I	25.82
29042 - Stevedore II	28.92
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO)	(see 2) 51.07
30011 - Air Traffic Control Specialist, Station (HFO)	(see 2) 35.22
30012 - Air Traffic Control Specialist, Terminal (HFO)	(see 2) 38.79
30021 - Archeological Technician I	19.82
30022 - Archeological Technician II	22.19
30023 - Archeological Technician III	27.01
30030 - Cartographic Technician	27.01
30040 - Civil Engineering Technician	24.45
30051 - Cryogenic Technician I	25.06
30052 - Cryogenic Technician II	27.68
30061 - Drafter/CAD Operator I	19.82
30062 - Drafter/CAD Operator II	22.19
30063 - Drafter/CAD Operator III	24.75
30064 - Drafter/CAD Operator IV	29.91

30081 - Engineering Technician I	17.60
30082 - Engineering Technician II	19.76
30083 - Engineering Technician III	22.11
30084 - Engineering Technician IV	27.37
30085 - Engineering Technician V	33.49
30086 - Engineering Technician VI	40.54
30090 - Environmental Technician	29.29
30095 - Evidence Control Specialist	22.63
30210 - Laboratory Technician	18.73
30221 - Latent Fingerprint Technician I	25.06
30222 - Latent Fingerprint Technician II	27.68
30240 - Mathematical Technician	28.73
30361 - Paralegal/Legal Assistant I	24.99
30362 - Paralegal/Legal Assistant II	30.95
30363 - Paralegal/Legal Assistant III	37.85
30364 - Paralegal/Legal Assistant IV	45.80
30375 - Petroleum Supply Specialist	27.68
30390 - Photo-Optics Technician	27.01
30395 - Radiation Control Technician	27.68
30461 - Technical Writer I	27.85
30462 - Technical Writer II	33.71
30463 - Technical Writer III	36.08
30491 - Unexploded Ordnance (UXO) Technician I	32.46
30492 - Unexploded Ordnance (UXO) Technician II	39.27
30493 - Unexploded Ordnance (UXO) Technician III	47.07
30494 - Unexploded (UXO) Safety Escort	32.46
30495 - Unexploded (UXO) Sweep Personnel	32.46
30501 - Weather Forecaster I	29.91
30502 - Weather Forecaster II	36.37
30620 - Weather Observer, Combined Upper Air Or	
Surface Programs	(see 2) 24.75
30621 - Weather Observer, Senior	(see 2) 27.01
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	39.27
31020 - Bus Aide	17.56
31030 - Bus Driver	22.88
31043 - Driver Courier	19.42
31260 - Parking and Lot Attendant	16.24
31290 - Shuttle Bus Driver	17.64
31310 - Taxi Driver	15.71
31361 - Truckdriver, Light	20.70
31362 - Truckdriver, Medium	21.96
31363 - Truckdriver, Heavy	29.25
31364 - Truckdriver, Tractor-Trailer	29.25
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	19.15
99030 - Cashier	15.41
99050 - Desk Clerk	15.19
99095 - Embalmer	32.46
99130 - Flight Follower	32.46
99251 - Laboratory Animal Caretaker I	22.55
99252 - Laboratory Animal Caretaker II	24.05
99260 - Marketing Analyst	30.27
99310 - Mortician	32.46
99410 - Pest Controller	27.96
99510 - Photofinishing Worker	17.06
99710 - Recycling Laborer	21.46
99711 - Recycling Specialist	24.72
99730 - Refuse Collector	19.85
99810 - Sales Clerk	17.57
99820 - School Crossing Guard	19.85
99830 - Survey Party Chief	29.98
99831 - Surveying Aide	20.22

99832 - Surveying Technician	21.98
99840 - Vending Machine Attendant	24.72
99841 - Vending Machine Repairer	29.64
99842 - Vending Machine Repairer Helper	24.72

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage

determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employee (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of ""wash and wear"" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the ""Service Contract Act Directory of Occupations"", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees

performs any contract work.

3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1)).""